

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

CHINA UNITED LINES, LTD,

Complainant,

vs.

AMAZON.COM SERVICES, LLC; AMAZON
LOGISTICS INC., AND BEIJING CENTURY
JOYO COURIER SERVICE CO., LTD.

Respondents.

FMC Docket No. 25-04

**COMPLAINANT’S RESPONSE TO RESPONDENTS’ STATEMENT OF
UNDISPUTED MATERIAL FACTS**

Pursuant to the Presiding Officer’s Initial Order, Complainant China United Lines, Ltd. (“CUL”)¹ respectfully submits this Response to Respondents’ Statement of Material Undisputed Facts in support of Complainant’s Opposition to Respondents’ Motion for Summary Disposition dated August 28, 2026.

I. The Parties’ Contractual Relationship and the Publicity Provisions

1. Amazon and China United (the “Parties”) entered into a transportation agreement in April 2022 consisting of the Amazon Global Logistics Main Transportation Agreement (“MTA”), the Nondisclosure Agreement (“NDA”), and a Work Order. *See* Attachs. A-B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).²

¹ All defined terms herein shall have the same meaning as they are defined in the Opposition to the Motion for Summary Disposition.

² Pursuant to Dkt. No. 5, Presiding Officer’s Initial Order (Jan. 23, 2025), evidence relied upon that has previously been provided by either party is cited rather than included in the appendix as a

Response: Admit that the Parties entered into the MTA, NDA, and Work Order. The transportation agreement is a service contract under FMC rules. *See* Verified Am. Complaint, Dkt. No. 11. As such, the service contract had a two-year term with volume and liquidated damages provisions subject to FMC regulations.

2. Section 7(2) of the MTA provides that China United “will not use Amazon’s trade name, trademark, service mark, logo, commercial symbol, or any other proprietary rights without Amazon’s prior written consent.” *See* Main Transportation Agreement, Attach. A to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

Response: Admit insofar as Section 7(2) contains the quoted language. Deny any intended interpretation that Section 7(2) operates as a standalone bar on use of Amazon’s name divorced from the confidentiality context in which it appears. Section 7(2) sits within Section 7 of the MTA, which is headed “Confidentiality” in bold. Main Transportation Agreement, Attach. A to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025) § 7. It appears directly below Section 7(1), which incorporates the NDA by reference and provides that “Confidential Information” bears the same meaning as in the NDA. *Id.* § 7(1). The NDA defines “Confidential Information” to mean “any nonpublic information relating to Amazon that is designated as confidential or that, given the nature of the information or the circumstances surrounding its disclosure, reasonably should be considered as confidential.” Nondisclosure Agreement, Attach. B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025) § 1. The NDA specifically excludes public information from its definition of “Confidential Information.” *Id.* §§1–2. CUL’s corporate representative Yew Ping Teo testified that both the NDA and the MTA describe

differently numbered copy of the same evidence.

requirements tied to confidentiality, and that the prohibition on use of Amazon’s name was understood by CUL to apply only insofar as the information remained confidential: “[B]oth says confidential, and [the Amazon-CUL relationship] was no longer confidential after the 4th of July posting.” RX 346, Teo Dep. 47:13–17; *see also* RX 355-56 Cardadeiro Dep. Tr. 13:2-14:2.

3. Section 7(1) of the MTA incorporates the NDA.

Response: Admit.

4. Section 6 of the NDA prohibits China United from using “any trade name, trademark, logo or any other proprietary rights of Amazon (or any of its Affiliates) in any manner without prior written authorization of such use by a Vice President of Amazon (or its applicable Affiliate).” *See* Nondisclosure Agreement, Attach. B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025). Section 7(2) of the MTA and the similar provision in Section 6 of the NDA are referred to herein as the “Publicity Provisions.”

Response: Admit insofar as Section 6 of the NDA contains the quoted language. Deny any intended inference that the prohibitions in Section 6 apply to non-confidential information, including information publicized by Amazon, first. Indeed, Section 6 of the NDA is entitled “Ownership of Confidential Information.” Attach. B to Dkt. No. 13 § 6 (emphasis added). Section 1 of the NDA defines “Confidential Information” to mean “any nonpublic information relating to Amazon that is designated as confidential or that, given the nature of the information or the circumstances surrounding its disclosure, reasonably should be considered as confidential.” *Id.* § 1 (emphasis added). The NDA specifically excludes public information from its definition of “Confidential Information.” *Id.* §§1–2. Section 7(2) of the MTA and the similar provision in Section 6 of the NDA are referred to herein

collectively as the “Confidentiality Provisions.” Further deny that Section 6 of the NDA constitutes a “publicity” provision, as that characterization is unsupported by the plain text of the agreement. Neither the term “publicity” nor any similar language appears in Section 6 or its heading.

5. Neither the MTA nor the NDA required Amazon to obtain China United’s consent before referring publicly to China United or using China United’s name. *See* Attachs. A-B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

Response: Admit that the MTA and NDA restrict CUL’s use of Amazon’s name only. Deny any intended inference that this asymmetry transforms the Confidentiality Provisions into freestanding proprietary-rights clauses separated from their “Confidentiality” context. Section 7(2) of the MTA sits within Section 7, which is headed “Confidentiality” and which, in Section 7(1), incorporates the NDA and defines “Confidential Information” to mean “any nonpublic information relating to Amazon.” Attachs. A-B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025). Section 6 of the NDA likewise only addresses Amazon’s “Ownership of Confidential Information.” Attach. B to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025). The asymmetry does not reflect a decision to create a standalone publicity prohibition untethered from the confidentiality framework.

6. During contract performance, China United was aware of the Publicity Provisions and the restrictions they imposed on China United’s use of Amazon’s name. *See* APP 89-92, 97-99, 100-103, Teo Dep. Tr. at 14:21-15:6, 27:8-28:4, 36:15-39:23.

Response: Admit that CUL understood its contractual obligations regarding use of Amazon’s name where the relationship remained nonpublic. Deny the broad scope implied.

CUL's corporate representative, Yew Ping Teo, testified that once Amazon publicly disclosed the Parties' relationship on July 4, 2022, the relationship was "no longer confidential." RX 346, Teo Dep. 47:13–17. CUL's Raymond Chen confirmed the same understanding: he believed Article 7 of the MTA related to "confidentiality," as stated in the title, and that the confidentiality premise was removed once Amazon posted publicly about the relationship. RX 25, Chen Decl. ¶ 37. Furthermore, deny that Section 6 or 7 of the NDA constitutes a "publicity" provision, as that characterization is unsupported by the plain text of the provision. The word "publicity" does not appear in Sections 6 or 7 of the NDA, or its heading.

7. On April 19, 2022, China United requested permission to use Amazon's name in a press release, ceremony, website materials, and public media accounts. *See* APP 63-66, Bates Nos. AMZ-00000174-AMZ-00000176; APP 97-99, Teo Dep. Tr. at 27:8-29:21.

Response: Admit that CUL sought permission for a public press release or social media post mentioning Amazon on April 19, 2022 and that Amazon denied that request. Deny any intended inference that Amazon's April 2022 denial was grounded in or invoked the Confidentiality Provisions; Amazon's response did not cite Section 7(2), the MTA, or the NDA as the basis for its denial. RX 61, Liu Decl. ¶ 38; APP 63-66. Further deny that this pre-disclosure denial is relevant to CUL's conduct after Amazon's July 4, 2022 WeChat post, which publicly disclosed the relationship and eliminated the confidentiality premise on which the consent requirement is predicated. RX 26, Chen Decl. ¶ 40; RX 346, Teo Dep. 47:13–17.

8. Amazon denied China United's April 19, 2022 request to use Amazon's name. *Id.*

Response: Admit that Amazon denied CUL’s April 2022 request. Deny any intended inference that Amazon’s denial was grounded in or invoked Section 7(2) of the MTA or the NDA. Amazon said nothing about the MTA or the NDA in its response. RX 61, Liu Decl. ¶ 38; APP 63-66. CUL understood Amazon’s response as reflecting Amazon’s wish for confidentiality regarding the relationship — a premise Amazon itself eliminated less than three months later by publicly posting about CUL on its own WeChat account on July 4, 2022. RX 25-26, Chen Decl. ¶¶ 38, 40; RX 70-91; Ex. X, RX 346, Teo Dep. 47:13–17.

9. In July 2022, China United requested permission to identify Amazon in an IPO prospectus. *See* APP 67-70, Bates Nos. AMZ-00002642-AMZ-00002644.

Response: Admit that CUL sought Amazon’s consent to include a reference to Amazon in its IPO prospectus in July 2022. Deny any intended inference that this request reflects CUL’s understanding of Section 7(2) as a freestanding, non-confidentiality-based restriction. The July 2022 IPO request was made at the direction of CUL’s outside lawyers at Baker McKenzie, who asked CUL to seek consent from a number of its principal clients as a matter of standard IPO diligence practice — not because CUL believed the confidentiality obligation remained operative after Amazon’s July 4, 2022 public post. RX 61-62, Liu Decl. ¶¶ 41, 43; RX 26, Chen Decl. ¶ 39; APP 67-70.

10. Amazon denied China United’s July 2022 request to use Amazon’s name. *Id.*

Response: Admit that Amazon denied CUL’s July 2022 request to include a reference to Amazon in its IPO prospectus. Deny any intended inference that this request reflects CUL’s understanding that Section 7(2) of the MTA or Section 6 of the NDA prohibited CUL from referencing Amazon after Amazon had already publicly disclosed the Parties’ relationship. The July 2022 IPO request was made at the direction of CUL’s outside lawyers at Baker

McKenzie, who asked CUL to seek consent from a number of its principal clients as a matter of standard IPO diligence practice — not because CUL believed the confidentiality obligation remained operative after Amazon’s July 4, 2022 public post. RX 61-62, Liu Decl. ¶¶ 41, 43; RX 26, Chen Decl. ¶ 39; APP 67-70. Moreover, Amazon’s response did not cite the MTA or the NDA as the basis for its denial, but instead stated only that Amazon preferred to remain anonymous. RX 61-62, Liu Decl. ¶ 41; APP 67-70.

11. From August 2022 through March 2023, without Amazon’s approval, China United used Amazon’s trade name across multiple public platforms on multiple occasions without written authorization from or notice to Amazon. *See* APP 106-110, 112-114, Transcript of Yew Ping Teo Deposition (“Teo Dep. Tr.”) at 43:15-18, 45:20-24, 51:6-20, 52:22-53:21, 55:1-56:18, 57:2-8.

Response: Admit that, after Amazon publicly disclosed the Parties’ relationship on its official WeChat account on July 4, 2022, CUL referenced Amazon in various publications. Deny that CUL’s references to Amazon exceeded the scope of information that Amazon had already publicly disclosed regarding the Parties’ relationship. Amazon’s July 4, 2022 WeChat post publicly identified CUL as Amazon’s route-capacity provider, promoted a “CULines promotion period,” published CUL sailing schedules and rates, touted the advantages of using CUL’s service, and discussed CUL’s schedule reliability and service performance. RX 26, Chen Decl. ¶ 40; RX 70-91. CUL’s subsequent references to Amazon merely reposted, summarized, or recast information that Amazon had already placed into the public domain. RX 28, Chen Decl. ¶¶ 46-49; RX 70-129, RX 190-215. As Raymond Chen testified, CUL “merely repost[ed] what Amazon had already posted” and, while CUL may have “summarized” or “simplified” Amazon’s statements, “at no time” did CUL

“actually exceed the content that was posted by Amazon.” RX 349, Trial Tr. 88:6-10. Mr. Chen further testified that he instructed CUL personnel that any publication concerning Amazon could not exceed “the content that was on July 4” and that CUL could not publish “anything exceeding what’s already been published by Amazon on July 4.” RX 349, Trial Tr. 88:9-10. Deny further that Amazon lacked awareness of CUL’s references. Amazon personnel followed CUL’s WeChat account, CUL’s publications remained publicly available, and Amazon never took issue with CUL’s reference to Amazon, prior to invoking the issue in connection with its effort to avoid its freight payment obligations. RX 238, Liao Dep. 20:9–17; RX 243, Wu Dep. 16:20–25.; RX 28-29, Chen Decl. ¶¶ 46-49. In addition, Amazon explicitly blessed CUL’s usage of the Amazon name in October 2022. RX 229-35; RX 258-59.

12. In September 2022, after China United had already published articles promoting its relationship with Amazon without Amazon’s permission, China United requested consent to disclose its relationship with Amazon to China International Capital Corporation, a third party, to perform a due-diligence interview with China United’s financial advisor for its upcoming IPO. *See* APP 72-75, Bates Nos. CUL003113-CUL003116.

Response: Admit that CUL sought Amazon’s participation in an interview with CUL’s pre-IPO auditor in September 2022. Admit that Amazon agreed to disclose the existence of the Amazon-CUL relationship to a third-party auditor conducting due diligence in connection with CUL’s proposed IPO, the same relationship that Amazon now contends CUL could not disclose without risking immediate termination for cause. RX 290-92, Cardadeiro Dep. 13:22-14:2, 20:20-25; APP 72-75. Deny any intended inference that CUL’s request reflects an acknowledgment that Section 7(2) of the MTA or Section 6 of

the NDA prohibited CUL from using Amazon's name after Amazon had already publicly disclosed the Parties' relationship. The request was made because CUL's auditor sought third-party confirmation of the business relationship as part of a routine due-diligence process, not because CUL believed the existence of the Amazon-CUL relationship remained confidential after Amazon's July 4, 2022 public disclosure. RX 62, Liu Decl. ¶¶ 42; RX 70-91. Amazon's willingness to confirm the existence of the relationship to an independent third party is consistent with CUL's understanding that the relationship itself was no longer confidential information. RX 62, Liu Decl. ¶¶ 42-43; RX 26-27, Chen Decl. ¶ 40; RX 70-91; APP 72-75.

13. In response, Amazon declined to provide information regarding its pricing or business practices but agreed to provide limited confirmation, for use in an internal due-diligence process and not publicly, that China United was a business partner of Amazon. *Id.*

Response: Admit that Amazon declined to provide information regarding its pricing and business practices. Admit that Amazon agreed to confirm the existence of the Amazon-CUL business relationship in connection with due diligence being conducted for CUL's proposed IPO. Deny any implication that the due-diligence process was merely "internal." The due diligence involved communications between Amazon and an independent third-party auditor conducting diligence in connection with CUL's IPO. APP 72-75.

Amazon's willingness to confirm the relationship to an independent third party is inconsistent with its present contention that identifying the same relationship constituted grounds for immediate termination for cause. RX 290-92, Cardadeiro Dep. 13:22-14:2, 20:20-25.

Deny further any implication that Amazon's response reflected a belief that the existence of the Parties' relationship remained confidential following Amazon's July 4, 2022 public disclosure of that relationship. While Amazon declined to disclose sensitive information regarding its pricing and business practices, it nevertheless agreed to confirm to a third-party auditor the very information Amazon had already publicly disclosed on its own WeChat platform: that CUL was an Amazon business partner. RX 70-91. Amazon's willingness to confirm that information to an independent third party is consistent with CUL's understanding that the existence of the relationship was no longer confidential information after Amazon's July 4 publication. RX 26, Chen Decl. ¶ 40

II. Termination of the Parties' Agreement

14. On April 1, 2023, Amazon provided notice that it was electing to terminate the Work Order for convenience following the contractually required 90-day notice period. *See* APP 77, Bates No. AMZ-00002089.

Response: Admit.

15. Had the termination for convenience taken effect, the Work Order's liquidated damages provisions would have been triggered. *See* Work Order, Attach. C to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

Response: Admit that, had Amazon's termination for convenience taken effect, the Work Order's Early Termination Tender Shortfall liquidated damages provision would have been triggered. Deny any intended inference that all types of liquidated damages were available only upon the effectiveness of a termination-for-convenience notice. The Work Order contains separate liquidated damages provisions appearing in different subdivisions of Schedule 3 and triggered by different events. *Compare* Schedule 3 § 5(1) with Schedule 3

§ 5(4), Work Order, Attach. C to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (Mar. 26, 2025). While Early Termination Tender Shortfall damages arise when Amazon terminates the Work Order for convenience pursuant to Schedule 3 § 5(4)(c), the Work Order separately provides for Tender Shortfall Liquidated Damages based upon Amazon’s failure to meet or exceed its MQC. *See id.* § 5(1)(b). Indeed, only the Early Termination Tender Shortfall provision is expressly limited to circumstances where Amazon “terminates this Work Order for convenience pursuant to Section 5(2) of the Agreement.” *Id.* § 5(4)(c)(i). By contrast, the Tender Shortfall Liquidated Damages provisions contain no such requirement. *See id.* § 5(1). The Work Order further provides that Tender Shortfall Liquidated Damages constitute Amazon’s “sole liability and entire obligation” and CUL’s “exclusive remedy” for Amazon’s failure to meet or exceed the MQC. *Id.* § 5(1)(d).

16. Amazon continued to pay contract rates above market rates and China United’s tariff rates after giving notice and until shipments under the contract ceased. *See* APP 153-154, St. Amand Expert Report at ¶¶ e-n; APP 189, McCown Expert Rebuttal Report at ¶ 5.

Response: Admit that Amazon paid the rates required by the Service Contract after providing its notice of termination for convenience and until shipments under the Service Contract ceased. Deny the characterization that rates were above market rates. As explained by CUL’s expert, the Service Contract was negotiated near the peak of an extraordinarily volatile Trans-Pacific freight market, and market rates declined substantially during the Parties’ relationship. RX 494-502, St. Amand Expert Report ¶¶ 32-45.

17. Amazon discovered that China United had breached Section 7(2) of the MTA prohibiting use of Amazon's name without prior written consent. *See* APP 79-82, Bates No. AMZ-00002218-AMZ-00002221.

Response: Deny to the extent Amazon seeks to imply that the referenced document establishes when Amazon first became aware of CUL's public references to Amazon. The document cited by Amazon does not establish that proposition. *See* APP 79-82. Amazon witnesses testified that Amazon employees followed CUL's WeChat account from the outset of the Parties' relationship. RX 238, Liao Dep. 20:9–17; RX 243, Wu Dep. 16:20–25. Amazon's Jesse Wu further testified that CUL's WeChat post was easy to find and could be located through simple keyword searches on Google or WeChat, in either English or Chinese. RX 244 Wu Dep. 18:20-19:1. Amazon's contemporaneous awareness of CUL's use of the Amazon name is further reflected by communications sent directly to Amazon executives regarding CUL's October 2022 TraPac event banner, which explicitly referenced the Amazon name, and to which Amazon responded with praise. RX 229-35, 258-59. The undisputed evidence therefore establishes that Amazon was aware of CUL's use of the Amazon name well before April 2023.

18. The Parties' agreement provided that unauthorized use of Amazon's name constituted grounds for termination for cause. *See* Main Transportation Agreement § 1.5.(3), Attach. A to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (March 26, 2025).

Response: Admit that the MTA provides that a material breach of Section 7(2) may constitute grounds for immediate termination for cause. Attach. A to Dkt. No. 13 § 1.5(3). Deny, however, that CUL violated Section 7(2). Section 7(2) appears within Section 7 of the MTA, entitled "Confidentiality," and incorporates the Parties' NDA as part of the same

confidentiality framework. Attach. A to Dkt. No. 13 § 7; Attach. B to Dkt. No. 13. As explained above, CUL did not disclose confidential information, and Amazon's contention that CUL violated Section 7(2) improperly treats that provision as a standalone publicity restriction divorced from the confidentiality provisions in which it appears.

19. Amazon commenced a due diligence investigation into the events underlying the potential termination for cause. *See* APP 131-134, Transcript of David Cardadeiro Deposition at 127:2-130:14.

Response: Deny. Amazon has withheld all internal communications and investigative materials that would reveal the actual timeline and substance of its investigation into CUL's use of Amazon's name. RX 361-78 (Amazon's Privilege Log) (identifying, among other entries, AMZ-00002233, an April 21, 2023 email thread titled "RE: Privileged and Confidential: CU Lines Marketing Using Amazon Name"; AMZ-00002510-AMZ-00002511, a June 5, 2023 email thread bearing the same title; and AMZ-00002810-AMZ-00002813, an April 20, 2023 email thread titled "FW: Privileged and Confidential: CU Lines Marketing Using Amazon Name"). Amazon cannot establish the nature, scope, or timing of that investigation through a selectively presented account while shielding the underlying investigative record behind assertions of privilege. *Id.* Amazon witnesses' testimony that Amazon employees followed CUL's WeChat account from the outset of the Parties' relationship further undermines Amazon's account. RX 238, Liao Dep. 20:9-17; RX 243, Wu Dep. 16:20-25. Amazon cannot simultaneously withhold the investigative record on privilege grounds and rely on self-serving characterizations of that investigation to support its motion.

20. On June 7, 2023, Amazon issued a superseding notice terminating the Parties' agreement for cause, effective immediately. *See* APP 84-86, Bates No. AMZ-00000495-AMZ-00000497.

Response: Admit that Amazon issued a notice purporting to terminate the Parties' agreement for cause on June 7, 2023. Deny that the June 7, 2023 notice validly superseded Amazon's earlier notice of termination for convenience or properly eliminated CUL's entitlement to freight payments for early termination of the Service Contract. Amazon issued the for-cause notice only after CUL refused Amazon's repeated efforts to reduce the liquidated damages owed as a consequence of Amazon's earlier election to terminate for convenience. RX 30, Chen Decl. ¶¶ 53-54. Amazon's own documents further reflect consideration of whether to "lean in to [CUL's] disclosure point to create leverage." RX 265. David Cardadeiro likewise testified that the June 7, 2023 termination letter "probably" would not have been sent had CUL agreed to reduce the liquidated damages. RX 360, Cardadeiro Dep. 126:6-14. Furthermore, CUL acted in reliance on the Notice of Termination for Convenience and Amazon elected its remedy by terminating the relationship for convenience. RX 30-31, Chen Decl. ¶ 30. The June 7, 2023 notice was therefore not a proper superseding termination, but rather a belated effort to escape the financial consequences of Amazon's prior termination-for-convenience election.

21. The first shipment under the Parties' agreement occurred on May 20, 2022. *See* APP 156, St. Amand Expert Report at ¶ 21.

Response: Admit.

22. The final shipment under the Parties' agreement occurred on June 19, 2023. *Id.*

Response: Admit.

23. At no point during the period of May 20, 2022 to June 19, 2023 did Amazon engage in any activity of false billing, false classification, false weighing, false reporting of weight, false measurement, or any similar unjust or unfair device or means. See APP 53-54, Dkt. No. 80, Complainant's July 10, 2026 Interrog. Resp., at 2-3.

Response: Deny. This statement is a legal conclusion rather than a statement of fact and is therefore not properly included in a statement of undisputed material facts. To the extent a response is required, CUL further denies the statement because Amazon engaged in an unjust and unfair device by affirmatively endorsing and encouraging CUL's use of the Amazon name while the Parties' commercial relationship remained favorable to Amazon, only to later characterize that same conduct as a material breach when Amazon sought to avoid the Freight Payments triggered by its decision to terminate the Service Contract early. RX 381-82, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 2-3.³ Amazon praised and approved conduct that it later claimed justified a for-cause termination, continued accepting the benefits of the Service Contract, sought concessions from CUL regarding the Freight Payments, and ultimately attempted to use CUL's use of the Amazon name as both leverage and a purported basis to avoid its Service Contract obligations. *Id.*; RX 229-235; RX 258-59; RX 265. Amazon engaged in deceit and fraud, not only blessing the usage of its name and keeping silent as to avoid its freight-payment obligations — conduct constituting an unjust and unfair device under 46 U.S.C. § 41102(a).

³ CUL cites and includes its complete Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 because Amazon elected to submit only an excerpt of that response. The omitted portions are necessary to present CUL's position accurately and completely.

III. China United's Fraud or Concealment Allegations

24. China United contends that Amazon's "inaction/silence" regarding China United's use of Amazon's name, coupled with Amazon's subsequent termination of the agreement for cause, constitutes concealment. *See* APP 53-54, Dkt. No. 80, Complainant's July 10, 2026 Interrog. Resp., at 2-3.

Response: Deny. This statement mischaracterizes CUL's position and, in any event, constitutes a legal conclusion rather than a statement of fact. To the extent a response is required, CUL denies the reductive characterization of its allegations. CUL's contention is not based merely on Amazon's inaction or silence. Rather, CUL contends that Amazon engaged in fraud and deceit by affirmatively endorsing and praising CUL's use of the Amazon name while the Parties' commercial relationship remained advantageous to Amazon, only to later characterize that same conduct as a material breach when Amazon sought to avoid the Freight Payments triggered by its decision to terminate the Service Contract early. RX 381-82, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 2-3. Amazon publicly promoted the Amazon-CUL relationship and , expressed written approval of CUL's use of the Amazon name, continued accepting the benefits of lower freight rates under the Service Contract, sought concessions regarding Early Termination Freight Payments, and ultimately wielded the same conduct it had previously endorsed as leverage and as a purported basis for a termination for cause as a means to avoid payment of its MQC shortfall obligations owing under the Service Contract. *Id.*; RX 229-235; RX 258-59; RX 265. In addition, the undisputed testimony of Amazon's own employees — who followed CUL's WeChat account from April 2022 — establishes that Amazon was aware of CUL's name usage online, but turned a blind eye to

that name usage throughout the relevant period and took no action. RX 238, Liao Dep. 20:9–17; RX 243, Wu Dep. 16:20–25.

25. China United alleges that Amazon waived the Publicity Provisions by publishing a post on Amazon’s WeChat platform that referenced China United and by not expressly objecting when China United later reposted that content. *Id.*

Response: Deny. This statement mischaracterizes CUL’s position and, in any event, constitutes a legal conclusion rather than a statement of fact. To the extent a response is required, CUL’s contention is not merely that Amazon failed to object when CUL republished information concerning the Parties’ relationship. Rather, CUL contends that Amazon remained silent in the face of CUL’s republication of information originally disclosed by Amazon itself and, when CUL later made explicit public use of the Amazon name, Amazon affirmatively praised and endorsed that conduct. RX 381-82, Complainant’s Response to Respondents’ 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 2-3. Amazon expressed no objection to CUL’s use of the Amazon name and instead thanked CUL for the October 2022 TraPac event, with Adam Baker stating that he “appreciate[d] the banner” and Becky Moore responding, “LOVE THESE PHOTOS! ... We appreciate all you do for Amazon.” RX 258-59; RX 229-235. Amazon later characterized that same conduct as a material breach of the contract to manufacture grounds to terminate the contract for cause when it became advantageous to avoid the Freight Payments associated with Amazon’s decision to terminate the Service Contract early. RX 382, Complainant’s Response to Respondents’ 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 3; RX 265. Furthermore, Amazon employees admitted to having concerns about the name usage, but kept those concerns to itself until an opportune time to employ those

concerns against CUL presented itself. RX 248-49, Baker Dep. 10:22–11:13; *see also* RX 295-96 Cardadeiro Dep. 65:19-66:4 (explaining that he did not complain to anyone about the banner because it was just a welcome sign showing hospitality). Further deny that Section 6 or 7 of the NDA constitutes a “publicity” provision, as that characterization is unsupported by the plain text of the agreement. Neither the term “publicity” nor any similar language appears in Sections 6 or 7 or its heading.

26. China United further alleges that Amazon waived the Publicity Provisions by failing to object to a welcome banner displaying Amazon’s name and when an Amazon employee complimented photographs taken in front of that banner. *Id.*

Response: Deny. This statement mischaracterizes CUL’s position and, in any event, constitutes a legal conclusion rather than a statement of fact. To the extent a response is required, CUL’s contention is not that an Amazon employee merely complimented photographs. Rather, CUL contends that Amazon remained silent in the face of CUL’s public use of the Amazon name and, when presented with photographs expressly depicting that use, affirmatively thanked and praised CUL for the conduct it now characterizes as a material breach. RX 382, Complainant’s Response to Respondents’ 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 3. Amazon’s Becky Moore responded to photographs depicting the October 2022 TraPac banner displaying Amazon’s name by stating, “LOVE THESE PHOTOS! Thanks for sharing . . . We appreciate all you do for Amazon.” RX 230. Likewise, Adam Baker thanked CUL for its hospitality and stated that he “appreciate[d] the banner.” RX 259. CUL’s contention is that Amazon later attempted to use that same conduct, which it had previously praised and endorsed, as a basis to avoid the Early Termination Freight Payments otherwise owed as a consequence of Amazon’s

decision to terminate the Service Contract early. RX 382, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 3; RX 265. Further deny that Section 6 or 7 of the NDA constitutes a "publicity" provision, as that characterization is unsupported by the plain text of the agreement. Neither the term "publicity" nor any similar language appears in Sections 6 or 7 or its heading.

27. None of the conduct identified by China United concerns the booking, tendering, transportation, release, or payment of or for any cargo shipment. *Id.*

Response: Deny. This statement mischaracterizes both the Parties' Service Contract and the nature of CUL's contention and, to the extent it advances a legal proposition, constitutes a legal conclusion rather than a statement of fact. The Early Termination Freight Payments were expressly tied to Amazon's MQC obligations and to any cargo shortfall resulting from Amazon's early termination of the Service Contract. Attach. C to Dkt. No. 13, Work Order, Sched. 3 §§ 5.4(a), 5.4(c). CUL dedicated substantial vessel capacity to Amazon, reserved space on its vessels, and provided rates to Amazon below its published rates, in reliance on Amazon's cargo commitments and the corresponding Early Termination Freight Payment protections. RX 23-25, Chen Decl. ¶¶ 28, 31, 33, 35. Those protections were so important to the Parties' bargain that CUL would not have entered into the relationship absent them. *Id.* ¶ 35. CUL's contention is that Amazon subsequently sought to pretextually avoid those Early Termination Freight Payment obligations after electing to terminate the Service Contract early, notwithstanding that those payments were an integral part of the bargained-for exchange governing Amazon's tendering of cargo and CUL's provision of dedicated shipping services. *Id.* ¶¶ 35, 52-55. Amazon's characterization of this case as unrelated to cargo tendering is contradicted by the undisputed fact that the Early Termination Freight

Payments and Tender Shortfall Liquidated Damages are expressly triggered by Amazon's failure to tender cargo in accordance with the Service Contract.

28. None of the conduct identified by China United involves any alleged misrepresentation concerning any particular cargo or shipment. *Id.*

Response: Admit that CUL does not contend that Amazon made any misrepresentation concerning a particular cargo shipment. CUL's contention instead concerns Amazon's conduct with respect to CUL's use of the Amazon name, Amazon's subsequent invocation of that same conduct as a basis for termination for cause, and Amazon's effort to avoid the Early Termination Freight Payments otherwise owed under the Parties' Service Contract. RX 382, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 3; Ex. X, Chen Decl. ¶¶ 53-56. CUL continued performing under the Service Contract in reliance on Amazon's endorsement of CUL's name usage, while Amazon concealed its intent to invoke that same conduct as a basis to avoid tender shortfall obligations.

29. China United's allegations concern whether Amazon waived compliance with the Publicity Provisions and whether Amazon properly exercised its contractual termination rights. *Id.*

Response: Deny. This statement mischaracterizes CUL's contention. CUL does not merely contend that Amazon waived the Confidentiality Provisions or improperly exercised contractual termination rights. Rather, CUL contends that Amazon engaged an unjust and unfair device by publicly promoting the Amazon-CUL relationship, remaining silent in the face of CUL's republication of information originally disclosed by Amazon, affirmatively praising and endorsing CUL's use of the Amazon name, continuing to accept the benefits of lower freight rates under the Service Contract, seeking reductions to the Early

Termination Freight Payments after electing to terminate for convenience, and then wielded the same conduct it had previously endorsed as both leverage and a purported basis for termination for cause as a means to avoid payment of its MQC shortfall obligations owing under the Service Contract. 381-82, Complainant's Response to Respondents' 46 C.F.R. § 502.143(b)(6) Deposition Topic No. 4 at 2-3; RX 229-235; RX 258-59; RX 265. Further deny that Sections 6 and 7 of the NDA constitutes a "publicity" provision, as that characterization is unsupported by the plain text of the agreement. Neither the term "publicity" nor any similar language appears in Sections 6 or 7 or its heading.

IV. China United's Reparations Claim

30. China United has presented no evidence of injury or loss from the Shipping Act violation it alleges. *See* APP 53-54, Dkt. No. 80, Complainant's July 10, 2026 Interrog. Resp., at 2-3; APP 93-95, Teo Dep. Tr. at 16:25-18:20; APP 124-126, Chen Dep. Tr. at 59:11-61:25.

Response: Deny. CUL has presented evidence of injury and loss under two alternative measures of reparations. First, CUL expressly pleaded re-rating as a remedy under Count I. The Verified Amended Complaint alleges that CUL "sustained actual injury when Respondents failed to pay Complainant's published rates and charges or to pay Amazon's full obligations in accordance with the Service Contract," and expressly seeks as reparations "the difference between the published tariff rates and charges at which China United would have carried such cargo in the absence of the Service Contract, and the Service Contract rates and charges, i.e., rerating of the cargo carried." Verified Am. Compl., Dkt. No. 11 ¶ 47. CUL supported that pleaded measure of injury with expert evidence calculating reparations under two re-rating methodologies. RX 494, APP 162-64, St. Amand Rep. ¶ 31 & Apps. F, I.

Alternatively, and in the event the Presiding Officer determines that re-rating is unavailable, the Service Contract itself forecloses Amazon's argument that CUL must separately prove out-of-pocket losses, unpaid freight, spoiled cargo, additional operational expenses, or other forms of actual injury. The Verified Amended Complaint seeks "reparations for the unlawful conduct described above, along with interest and Complainant's attorney's fees and costs as described in 46 U.S.C. § 41305." Verified Am. Compl., Dkt No. 11, Prayer for Relief.

The Parties expressly agreed under the Service Contract that, if Amazon failed to satisfy its MQC obligations, CUL's resulting harm would be measured through the Tender Shortfall Liquidated Damages provisions. Specifically, the Work Order provides that, if Amazon fails to tender sufficient FEUs to meet 80% of the MQC, CUL may recover Tender Shortfall Liquidated Damages calculated at \$2,000 for each FEU below that threshold. *See* Work Order, Attach. C to Dkt. No. 13, Resp. Motion to Dismiss (Confidential) (Mar. 26, 2025), Sched. 3 § 5.1(b). The Parties further agreed that CUL's harm resulting from Amazon's failure to satisfy the MQC "would be impossible or very difficult to accurately estimate" and that the Tender Shortfall Liquidated Damages constitute "a reasonable estimate of the anticipated or actual harm" arising from that failure. *See id.*, Sched. 3 § 5.1(e). The Work Order makes those damages Amazon's "sole liability and entire obligation" and CUL's "exclusive remedy" for Amazon's failure to satisfy the MQC. *See id.*, Sched. 3 § 5.1(d).

Here, the undisputed facts show that Amazon ceased tendering cargo toward its MQC in June 2023 and tendered no cargo thereafter through the expiration of the Service Contract.

RX 476, Teo Opp'n Decl. ¶ 7. Applying the contractual damages formula to Amazon's tender shortfall yields damages of \$47,616,000. RX 476-77, Teo Opp'n Decl. ¶ 8-15.

Month	Weeks	MQC	80% Commitment	Planned Volume	Actual Volume	Shortfall	Cost Due to CU Line
05-2023	4	2,400	1,920	640	854	1,066	\$2,132,000
06-2023	5	3,000	2,400	800	298	2,102	\$4,204,000
07-2023	4	2,400	1,920			1,920	\$3,840,000
08-2023	4	2,400	1,920			1,920	\$3,840,000
09-2023	5	3,000	2,400			2,400	\$4,800,000
10-2023	4	2,400	1,920			1,920	\$3,840,000
11-2023	4	2,400	1,920			1,920	\$3,840,000
12-2023	5	3,000	2,400			2,400	\$4,800,000
1-2024	4	2,400	1,920			1,920	\$3,840,000
2-2024	4	2,400	1,920			1,920	\$3,840,000
3-2024	5	3,000	2,400			2,400	\$4,800,000
4-2024	4	2,400	1,920			1,920	\$3,840,000
Grand Total	52	31,200	-	-	-	-	\$47,616,000

31. China United asserts a reparations claim based on a tariff re-rating theory. *See* APP 155-160, St. Amand Expert Report at ¶¶ 17-31; APP 193-194, McCown Expert Rebuttal Report at ¶¶ 91-96; APP 115-118, Teo Dep. Tr. at 123:5-126:18.

Response: Admit.

32. China United had several “gaps” in its published FMC tariffs: one gap between May 20, 2022 when cargo started moving under the contract and August 9, 2022, and five gaps between the expiration of an applicable published tariff and the effective date of the next applicable published tariff. *See* APP 158, St. Amand Expert Report at ¶¶ 24-25, Figure 3.

Response: Deny. Kardian explained that because the tariffs contained no expiration dates, there were no “gaps” in the tariff application. RX 318, Kardian Rep. at 27. Kardian's testimony made clear that, to the extent there were any apparent gaps, those are filled by the unexpired Cargo NOS tariff. RX 321, Kardian Dep. 26:18-27:20.

33. China United presented two alternative methods of calculating alleged reparations using a “placeholder” rule to address the “gaps.” *Id.*

Response: Deny. Kardian explained that because the tariffs contained no expiration dates, there were no “gaps” in the tariff application. RX 318, Kardian Rep. at 27. Kardian's

testimony made clear that, to the extent there were any apparent gaps, those are filled by the unexpired Cargo NOS tariff. RX 321, Kardian Dep. 26:18-27:20. Deny Amazon's characterization of the Cargo NOS tariff as a "placeholder" rate.

34. Under the first approach China United addressed the gap period between May 20, 2022 and August 9, 2022 by applying a "placeholder" rate rule that set out a non-rate weight-volume calculation equating to approximately \$35,000 per FEU. For the five remaining gap periods it used the rate of the previously expired tariff until the next tariff became effective. *See* APP 152, 158-160, 162-163, St. Amand Expert Report at ¶¶ 6, 25-26, 31, App. F; APP 170-171, 183-184, Transcript of David St. Amand Deposition ("St. Amand Dep. Tr.") at 19:15-20:02, 156:8-157:11.

Response: Deny Amazon's characterization of the tariff as a "placeholder" rate, but otherwise admit.

35. China United's first re-rating approach yielded a reparations claim of \$157,413,949.00. *Id.* All of the reparations were attributable to the first gap period when the "placeholder" rate rule was used; for the remaining periods the contract rates were above the tariff rates used and the re-rating yielded negative reparations. *See* APP 176, 177, St. Amand Dep. Tr. at 99:04-99:08, 140:04-140:22; APP 201-204, McCown Dep. Tr. at 12:24-15:12; APP 162-163, St. Amand Expert Report, App. F; APP 194-195, McCown Expert Rebuttal Report at ¶¶ 94-95, 101.

Response: Admit that CUL's expert, David St. Amand, calculated net reparations of \$157,413,949 under the methodology using the most recently expired tariff during the identified interim periods. RX 493-494, App. 162-63, St. Amand Rep. ¶¶ 28-31 & App. F. Deny the remainder. Deny Amazon's characterization of the tariff as a "placeholder" rate.

Amazon's assertion that the re-rating yielded "negative reparations" mischaracterizes St. Amand's analysis by isolating selected periods rather than addressing the completed re-rating. Mr. St. Amand calculated the tariff charges applicable to all cargo Amazon actually shipped under the Service Contract and compared those charges to the amounts Amazon paid. RX 488-494, App. 162-63 St. Amand Rep. ¶¶ 18-31 & App. F. Based on that analysis, Amazon would have owed \$293,747,229 at tariff rates, compared to \$136,333,280 actually paid, resulting in net reparations of \$157,413,949. RX 493-494, App. 162-63, St. Amand Rep. ¶¶ 28-31 & App. F. The fact that Service Contract rates exceeded tariff rates during certain periods does not convert the completed re-rating into a negative calculation or undermine St. Amand's ultimate reparations figure. Moreover, Amazon's expert, John McCown, admitted that he never performed a re-rating calculation. When asked for his own re-rating calculation, Mr. McCown testified: "I have not done that exercise. Again, that wasn't something that I was tasked with doing. But I believe it would come out to be a negative number." RX 335, McCown Dep. 26:17-21. Thus, Amazon's purported "negative reparations" theory is not based on any re-rating that Mr. McCown actually performed.

36. China United's "alternative" approach addressed all of the "gaps" in its tariffs by applying the "placeholder" rate rule with the non-rate weight-volume calculation that equated to approximately \$35,000 per FEU. *See* APP 152, 159, 160, St. Amand Expert Report at ¶¶ 6, 26, 31, App. I; APP 170-172, St. Amand Dep. Tr. at 19:18-20:02, 20:20-21:10.

Response: Admit that Mr. St. Amand's alternative re-rating methodology applied the unexpired July 1, 2021 tariff to the periods identified in his report and produced the resulting re-rating calculation. RX 492-94, St. Amand Rep. ¶¶ 25-26, 31. Deny Amazon's

characterization of the July 1, 2021 tariff as a “placeholder” rate. In any event, the characterization of the tariff as a “placeholder” has no bearing on the propriety of re-rating. CUL’s expert, Gary Kardian, testified that whether a tariff is characterized as a placeholder is irrelevant to the re-rating analysis and that, even if the tariff were characterized as a placeholder, that fact “would not bar re-rating.” RX 330, Kardian Dep. 214:15-19.

37. That calculation yielded a reparations claim of \$384.4 million. Again, all of the reparations were attributable to the use of the “placeholder” rate rule for the “gap” periods, and for the remaining periods the contract rates were above the tariff rates used and the re-rating yielded negative reparations. *See* APP 160, 164, St. Amand Expert Report at ¶ 31, App. I; APP 179-182, 185-186, St. Amand Dep. Tr. 146:01-149:03, 158:17-159:14; APP 201-204, McCown Dep. Tr. at 12:24-15:12; APP 195-196, McCown Expert Rebuttal Report at ¶¶ 101, 116.

Response: Admit that Mr. St. Amand’s alternative re-rating methodology yielded net reparations of \$384,412,592. RX 493-494, St. Amand Rep. ¶¶ 26, 31. Deny the remainder. Deny Amazon’s characterization of the tariff as a “placeholder” rate. Amazon’s assertion that the alternative methodology would have yielded negative reparations during certain periods selectively isolates portions of the analysis rather than addressing the completed re-rating calculation. St. Amand’s alternative methodology applied the unexpired July 1, 2021 tariff to the identified periods and calculated total tariff charges of \$520,745,872, compared to \$136,333,280 paid by Amazon, resulting in net reparations of \$384,412,592. RX 493-494, St. Amand Rep. ¶¶ 26, 31. Moreover, Amazon’s expert, John McCown, did not perform a re-rating calculation of his own. When asked for his own re-rating calculation, Mr. McCown testified: “I have not done that exercise. Again, that wasn’t

something that I was tasked with doing. But I believe it would come out to be a negative number.” RX 335, McCown Dep. 26:17-21. Thus, to the extent Amazon relies on a purported “negative” re-rating theory, that assertion is not based on any re-rating analysis performed by Mr. McCown.

38. The non-rate weight-volume rule included the notation “Rate Related: N” and “Apply by Default: N.” *See* APP 88, CUL003430. This means, as it plainly states, that the rule was not rate-related and did not apply by default. *See* APP 208-210, McCown Dep. Tr. at 76:01-78:3.

Response: Deny. Amazon’s interpretation of the notations “Rate Related: N” and “Apply by Default: N” is contradicted by the testimony concerning the operation and applicability of CUL’s Cargo NOS tariff. CUL’s expert, Gary Kardian, testified that, absent another applicable rate, cargo defaults to the Cargo NOS rate and that the “gap” periods identified by Amazon should be covered by the unexpired Cargo NOS rate of \$500 per weight/measure ton. RX 321-22, Kardian Dep. Tr. 26:18–27:4, 27:15–20. Mr. Kardian further testified that “the tariff to be applied to any gap should be the original tariff,” that “there really are no gaps because the originally filed U.S. tariffs by CUL contain no expiration dates,” and that “you always have a rate because you have a cargo NOS rate in place.” RX 327, Kardian Dep. Tr. 129:5–10, 130:1–21, 131:1–3. By contrast, Amazon’s expert, John McCown, admitted that he did not conduct a re-rating in his report. RX 333, McCown Dep. 9:23–24. Mr. McCown further admitted that he was unaware of the FMC ever identifying any issue with CUL’s \$500 weight/measure tariff. RX 338, McCown Dep. 29:12–17. Indeed, when asked for the result of his own proposed re-rating methodology, McCown acknowledged: “I have not done that exercise. Again, that wasn’t something that

I was tasked with doing. But I believe it would come out to be a negative number.” RX 335, McCown Dep. Tr. 26:17–21. Amazon’s interpretation of the administrative notations therefore does not establish that the unexpired Cargo NOS tariff was unavailable for re-rating and rests on speculation from an expert who admittedly never performed the analysis he proposes.

39. China United’s expert confirmed that the regulation its re-rating theory is based on, 46 C.F.R. § 530.10, is inapplicable to this proceeding. *See* APP 140-142, 143-149, Kardian Dep. Tr. at 117:06-119:06; 120:11-126:04.

Response: Deny. Amazon mischaracterizes Gary Kardian’s testimony. Mr. Kardian did not testify that 46 C.F.R. § 530.10 was ruled inapplicable to this proceeding. Instead, he distinguished the dismissed count from the surviving Count I and testified that the re-rating issue remained for consideration under Count I. Ex. X, Kardian Dep. Tr. 73:11–75:17. He further explained that his opinion asked the Presiding Officer to determine whether re-rating applies if Amazon failed to satisfy the MQC or pay the contractually contemplated Early Termination Freight Payments. RX 325-326, Kardian Dep. Tr. 112:8–18, 115:16–116:15.

V. Complainant’s Additional Material Facts Demonstrating Genuine Issues For Hearing

40. Under NDA § 1, information that Amazon has publicly disclosed is not “Confidential Information.” Attach. B to Dkt. No. 13 § 1.

41. On July 4, 2022, Amazon published a WeChat post promoting CUL’s transpacific service from China to the U.S. West Coast and identifying CUL as Amazon’s service provider. RX 26-27, Chen Decl. ¶ 40; RX 70-91.

43. Amazon subsequently published similar content on its official WeChat account on August 9, 2022, and December 8, 2022, expressly identifying CUL as its service provider. RX 27, Chen Decl. ¶ 43; RX 92-129.

44. Through its July 4, August 9, and December 8, 2022 WeChat posts, Amazon publicly disclosed: (a) the existence of the Amazon-CUL contractual relationship; (b) CUL's role as Amazon's transpacific route capacity provider; (c) performance metrics, including delivery-time stability and the on-schedule rate; (d) capacity information concerning large-scale seller restocking demand; and (e) information concerning service continuity across different seasons of demand. RX 70-129.

45. CUL's August 9, 2022 WeChat, LinkedIn, and website publications referenced the existence of the Amazon-CUL relationship and evaluative content Amazon had already published in its July 4, 2022 WeChat post, including the "Amazon Global Logistics Team" comments and 97.1% on-schedule performance data. RX 70-91; RX 130-189; RX 190-215; RX 388-400.

46. CUL's November 22, 2022 WeChat post republished content from Amazon's July 4, 2022 WeChat post, including Amazon's public evaluation of CUL's service. RX 70-91; RX 401-434.

47. CUL's December 5 and December 8, 2022 WeChat posts referenced the Amazon-CUL relationship and the same categories of stability, capacity, and seasonal-service information that Amazon publicly disclosed in its December 8, 2022 WeChat post. RX 112-129; RX 435-450.

48. CUL's March 16, 2023 WeChat post and website article referenced the same categories of relationship, performance, capacity, and seasonal-service information that Amazon had

publicly disclosed in its July 4, August 9, and December 8, 2022 WeChat posts. RX 70-129, RX 451-472.

49. Amazon was aware of CUL's public presence and WeChat activity long before Amazon's claimed April 18, 2023 discovery of CUL's WeChat posts. Amazon employees followed CUL's WeChat account from the outset of the parties' relationship beginning in April 2022. RX 238, Liao Dep. 20:9–17; RX 243, Wu Dep. 16:20–25.

50. CUL's WeChat posts could be located through keyword searches on Google or WeChat in either English or Chinese. RX 244, Wu Dep. 18:20-19:1.

51. On October 24, 2022, seven senior Amazon executives visited CUL at the TraPac terminal in Los Angeles. During that visit, CUL displayed a large banner on the dockside hull of its vessel stating, "CULINES and TRAPAC PROUDLY WELCOME AMAZON TEAM ABOARD." RX 63-64, Liu Decl. ¶¶ 47-49.

52. The banner bearing Amazon's name was visible to stevedores, other vessel crews, and members of the public traveling on the adjacent street. RX 64, Liu Decl. ¶ 49.

53. CUL took photographs of Amazon executives positioned beneath the banner, and none of the Amazon representatives present objected to CUL's public use of Amazon's name. RX 64, Liu Decl. ¶ 50; RX 229-235.

54. After the TraPac event, CUL sent photographs depicting Amazon executives beneath the banner directly to Amazon executives Adam Baker and Becky Moore. Moore responded, "LOVE THESE PHOTOS! Thanks for sharing — I was told you were a very great tour guide. We appreciate all you do for Amazon." Baker responded, "Thank you very much on behalf of my whole team for your hospitality . . . appreciate the banner." RX 64, Liu Decl. ¶ 52; RX 230; RX 259.

55. Baker later testified that he found the TraPac banner “concerning,” but he did not communicate that concern to CUL. RX 248-49, Baker Dep. 10:22-11:13.

56. Amazon continued performing under the Work Order for nearly eight months after the TraPac event without raising any objection to CUL’s use of Amazon’s name on the banner or in any other context. *See* RX 65, Liu Decl. ¶ 53.

57. On February 27, 2023, before Amazon’s claimed April 18, 2023 discovery of CUL’s WeChat posts, Amazon employee Michael Doblinger wrote internally to David Cardadeiro that Amazon should send a convenience termination notice and then “see if/how CUL execute the sailings for a few weeks.” Doblinger further stated: “If CUL blanks us for a few weeks, we will have an opportunity to term for cause. . . . We don’t have cause today.” RX 304.

58. Amazon repeatedly acknowledged that the Early Termination Freight Payments were owed and reiterated that position during the May 9, 2023 meeting with CUL in Shanghai. RX 66-68, Liu Decl. ¶¶ 59, 66; RX 306-09; RX 481-485.

59. During the May 9, 2023 Shanghai meeting, David Cardadeiro told CUL that Amazon appreciated its partnership over the preceding eleven months and that CUL had been an “incredible partner.” Cardadeiro further stated that Amazon’s termination for convenience had nothing to do with CUL’s performance or the manner in which CUL had conducted itself as Amazon’s partner. RX 30, Chen Decl. ¶ 53; RX 281-82, Teo Decl. ¶ 17.

60. During the May 9, 2023 Shanghai meeting, Cardadeiro asked CUL to consider reducing the \$31.56 million payment due under the Work Order, and CUL declined to agree to a reduction. RX 30-31, Chen Decl. ¶¶ 53-54; RX 281-82, Teo Decl. ¶ 17.

61. Cardadeiro did not disclose during the May 9, 2023 Shanghai meeting that Amazon was investigating CUL for an alleged breach of the MTA or NDA or that Amazon was contemplating termination for cause. RX 30, Chen Decl. ¶ 53; RX 281-82, Teo Decl. ¶ 17.

62. On May 10, 2023, one day after the Shanghai meeting, Amazon internally considered whether to “lean in to the disclosure point to create leverage” in negotiating a reduction of its payment obligation to CUL. RX 299.

63. Cardadeiro wrote internally that CUL was “definitely counting the \$31mm,” and Klosky responded that CUL “need[ed] that cash to stay afloat.” *Id.*

64. On April 26, 2023, as part of its ramp-down plan, Amazon required CUL to make space available for 160 FEU per week during May and June 2023 through the end of Week 26. RX 68 X, Liu Decl. ¶ 65; RX 29, Chen Decl. ¶ 51.

65. CUL kept its service available and reliable to Amazon throughout the ramp-down period. RX 31, Chen Decl. ¶ 55.

66. David Cardadeiro testified that Amazon’s for-cause termination letter “probably” would not have been issued if CUL had agreed to reduce the amount of the Early Termination Freight Payments. RX 297, Cardadeiro Dep. 126:6-14.

67. Connor Klosky testified that, if CUL had agreed to “reasonable rates,” there would not have been a need to terminate CUL. RX 257, Klosky Dep. 184:6-15.

68. Amazon issued its Notice of Termination for Cause on June 7, 2023, after CUL declined Amazon’s request to reduce the payment due under the Work Order. RX 30-32, Chen Decl. ¶¶ 53-54, 56.

69. During the same period in which CUL reduced its freight rates at Amazon's request, Amazon thanked CUL for its public use of Amazon's name at the TraPac terminal. RX 63-64, Liu Decl. ¶¶ 46, 52; RX 229-235; RX 258-63.

70. Amazon later invoked CUL's use of the Amazon name after determining that CUL's renegotiated rates were "no longer competitive." RX 65-66, Liu Decl. ¶¶ 55, 58; RX 310-311.

71. CUL's witnesses each testified that CUL was shocked by Amazon's decision to terminate the Work Order for cause based on CUL's alleged breach of the Service Contract's confidentiality provisions. RX 68, Liu Decl. ¶ 67; RX 31-32, Chen Decl. ¶ 56; RX 283, Teo Decl. ¶ 22.

DATED: August 28, 2026

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 28th day of August 2026, a true and correct copy of the foregoing **RESPONSE TO RESPONDENTS' STATEMENT OF UNDISPUTED MATERIAL FACTS** was served via electronic mail on:

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